

Tentative Rulings for July 17, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2600663	VASQUEZ vs MERCEDES-BENZ USA, LLC	MOTION PURSUANT TO CODE CIV. PROC § 473(B) FOR RELIEF FOR FAILURE TO FILE AN OPPOSITION TO DEFENDANT'S DEMURRER TO COMPLAINT

Tentative Ruling:

In the court's order filed June 18, 2026, Plaintiff's motion for relief pursuant to C.C.P. section 473, subdivision (b), for failure to file an opposition to Defendant's demurrer to complaint was continued to July 17, 2026, and the hearing on June 23, 2026 re: dismissal pursuant to demurrer sustained without leave to amend was vacated.

Code of Civil Procedure section 473, subdivision (b), provides in relevant part: "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted[.]" (Code Civ. Proc., § 473, subd. (b).) No proposed opposition, as required under section 473, subdivision (b), was submitted with this motion.

The hearing on the motion for relief pursuant to Code of Civil Procedure section 473, subdivision (b), for failure to file an opposition to defendant's demurrer, is continued to August 4, 2026, at 8:30 a.m., to allow Plaintiff to file a proposed pleading, i.e. its proposed opposition.

If a timely request for oral argument is made by no later than 4:30 p.m. on July 16, 2026, oral argument will be heard on July 17, 2026 at 10:00 a.m. (not 8:30 a.m.).